



File No.: EXP202300202

RESOLUTION OF SANCTIONING PROCEDURE

Of the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) on 03/11/2021 filed a complaint with the Spanish Agency for Data Protection. The complaint is based on the fact that without their knowledge or consent, the electricity supply contract they had with NATURGY IBERIA, S.A. (hereinafter, NATURGY or the outgoing supplier) for the CUPS of their residence has been terminated. This fact led to the opening of the present sanctioning procedure against the distribution company UFD DISTRIBUCIÓN ELECTRICIDAD, S.A., with NIF A63222533 (hereinafter, the respondent or UFD).

The complainant states in their complaint that:

- On 23/10/2021, they received an SMS from their supplier, NATURGY, with the text "we have terminated your electricity contract at your residence with postal code ***CP.1".
- Having not processed any change of supplier, after verifying that there was no electricity contract for the CUPS of their home (***ADDRESS.1) on NATURGY's customer service page, they contacted that entity, which informed them that the change was made after receiving an order from the distributor UFD following the standard procedure, an order that they are obliged to comply with. Incident number processed with NATURGY RR-***REFERENCE.1.
- They contacted UFD, which confirmed that it had sent NATURGY an order for a change of supplier and a change of ownership of the CUPS of their residence and informed them that IBERDROLA CLIENTES, S.A.U. (hereinafter IBERCLI) is the new supplier for the supply point (incoming supplier). Incident processed with UFD number ***REFERENCE.2.
- Subsequently, they contacted IBERCLI, which informed them that it is providing service to the CUPS of their residence but cannot provide further information as they are not the holder of the service after the change occurred. They were referred to present their problem to the email address documento02@tuiberdrola.es, to which they must send a copy of their ID and the last bill issued by NATURGY. From that email address, they were forwarded to do the same procedure, sending a copy of the ID and the last bill, to clientes@iberdrola.es. Claim tracking number with IBERCLI: ***REFERENCE.3.

Attached to their complaint are the following documents:

- Complaint filed with the Police Station on 27/10/2021.
- ID.

C/ Jorge Juan, 6

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28001 – ***LOCALITY.1

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- Last bill that NATURGY issued in their name, dated 19/10/21. It includes, in addition to the complainant's identity details and partially anonymized banking details, the electricity contract number and the type of tariff. In the section "Your electricity supply data," this information is included:

"Access contract number (UFD DISTRIBUCIÓN ELECTRICIDAD, S.A.):

***REFERENCE.4

CUPS Code: ***REFERENCE.5

Supply address: ***ADDRESS.1"

SECOND: On 24/01/2022, in accordance with Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (LOPDGDD), the complaint filed by the complainant was admitted for processing.

The admission agreement was notified to the complainant through an announcement published in the BOE (Supplement of notifications of the BOE of 10/03/2022), as the postal notification was attempted without effect, in accordance with Article 44 of Law 39/2015, of October 1, on the Common

Administrative Procedure of Public Administrations (LPACAP).

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts by virtue of the functions assigned to control authorities by Article 57.1 and the powers granted to it by Article 58.1, both of the Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD.

The report of preliminary investigation actions was signed by the acting inspector on 23/09/2022.

Actions were carried out before the entities IBERDROLA CLIENTES, S.A.U., with NIF A95758389; NATURGY ENERGY GROUP, S.A., with NIF A08015497; and UFD DISTRIBUCIÓN ELECTRICIDAD, S.A., with NIF A63222533 (formerly UNIÓN FENOSA DISTRIBUCIÓN, S.A.)

The section "Result of the Investigation Actions" from the Data Inspector's report is reproduced below:
<<[...]

All the information cited here is under the file number that titles this report. Specifically, in addition to the documentation referred to in the background section, information from the following sources is included:

- Relevant documentation for the purposes of these actions incorporated through the diligence "Diligence References".
- Written communication from Naturgy registered with the AEPD on June 15, 2022, with number REGAGE22e00024770455 (WrittenNaturgy#1).

C/ Jorge Juan, 6

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28001 – ***LOCALITY.1

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3/25

- Incoming document [from IBERDROLA CLIENTES, S.A.U.] registered with the AEPD on June 29, 2022, with number REGAGE22e00026982372 (Document[...]#1).
- Incoming document [from IBERDROLA CLIENTES, S.A.U.] registered with the AEPD on July 11, 2022, with number REGAGE22e00029669920 (Document[...]#2).
- Incoming document from UFD registered with the AEPD on July 14, 2022, with number REGAGE22e00030399852 (DocumentUFD#1).

****Procedure for Changing Energy Supplier****

Naturgy expresses (DocumentNaturgy#1) that the parties involved in the energy supplier change procedure are three (in addition to the customer user):

- "Incoming supplier: This is the new supplier that requests the distributor to change the supplier in its favor.
- Outgoing supplier: The supplier that stops supplying the consumer once the process is completed and the supplier change is effective.
- Distributor: This is the owner of the distribution network where the supply point is generally located, the entity that bills the access fees, the one responsible for the information system of the supply points, and the one in charge of reading at the consumption points. The distributor, therefore, processes the requests for supplier changes."

Naturgy describes the energy supplier change procedure in the following paragraphs of DocumentNaturgy#1:

"The process begins with the customer signing the supply contract with the new supplier (incoming). Subsequently, the incoming supplier will send a change request to the distributor through the Transport Distribution Communication System (hereinafter, SCTD). The distributor performs the format and content validations defined for each process and, consequently, evaluates whether to accept or reject its processing under criteria also defined and included in the regulations governing this communication system. If the request is accepted, it activates the change and informs both the incoming and outgoing suppliers of this change.

All exchanges of information between distributors and suppliers are carried out using the format defined by the National Commission for Markets and Competition (hereinafter CNMC) for each

process. The format defines the flow of communications or messages exchanged by the involved agents, namely, distributors and suppliers, the established deadlines for sending messages, the cases of concurrency with other processes, the reasons for rejection and incidents, as well as the electronic communication files that must be used to transmit each message.

Thus, in the case of changing suppliers, there are two different formats:

1. One for changing suppliers without modifications to the access contract, called:

a. C1 in the electricity sector

[...]

2. Another for changing suppliers with modifications to the access contract (e.g., change of contract holder, change of ATR, etc.), called:

a. C2 in the electricity sector

[...]

As indicated, all requests for supplier changes, with or without contractual modification, are processed through the SCTD system of each distributor, which manages both the exchange of messages defined for each process and the execution, activation, and communication of the same, according to the information exchange file formats between distributors and suppliers established by the CNMC in the resolutions corresponding to Files INF/DE/152/15 and INF/DE/011/19."

The CNMC document "RESOLUTION APPROVING THE FORMATS OF THE INFORMATION EXCHANGE FILES BETWEEN DISTRIBUTORS AND SUPPLIERS OF ELECTRICITY AND NATURAL GAS" - hereinafter the Resolution - (see Diligence References) includes information about the file formats C1 (Change of supplier without modifications to the access contract) and C2 (Change of supplier with modifications to the access contract). In both cases, it defines the concepts of "format validations" and "content validations" that the distributor must perform for the request to be accepted:

- "Format validations: Formal checks carried out by the distributor on the change request of a supply point to verify that the XML messaging (eXtensible Markup Language) used corresponds to the definition given in the basic structure of the XSD (XML Schema Definition, a schema language used to describe the structure and restrictions of the contents of XML documents). These format validations will be performed on the total content of the XML message regardless of the mandatory or optional nature of the fields contained in the message. If an XML message does not pass the format validation, it does not enter the distributor's systems."
- "Content validations: Checks performed by the distributor on the content of the supplier change request to verify that the specific requirements of the process and common to all distributors are met (e.g., minimum mandatory content of the request). They are also referred to as cross validations."
- "Accepted request: C1 request that passes the distributor's format and content validation filters, for which the distributor assumes a commitment to activation."

5/25

- "Request rejected: C1 request that passes the distributor's format validation filter but does not pass the content validation."
- "Request accepted: C2 request that passes the distributor's format and content validation filters, for which the distributor assumes a commitment to activation subject to the technical limitations of the process."
- "Request rejected: C2 request that passes the distributor's format validation filter but does not pass the content validation."

Regarding the possible reasons for rejection of the operation by the distributor, the resolution states the following:

- Regarding process C1: "In the process of changing the marketer without modifications to the access contract, the distributor must use the rejection reasons applicable to process C1, from those listed in table 27 in the document titled 'CNMC - E - Code Tables - AAAA.MM.DD.doc' of the Communication Formats for the Electricity Sector, which is published in the section 'Formats of electricity exchange files' within the 'Change of Marketer' area of the CNMC website."
- Regarding process C2: "In processes of changing the marketer with modifications to the access

contract, the distributor must use the rejection reasons applicable to process C2, from those listed in table 27 in the document titled 'CNMC - E - Code Tables - AAAA.MM.DD.doc' of the Communication Formats for the Electricity Sector, which is published in the section 'Formats of electricity exchange files' within the 'Change of Marketer' area of the CNMC website. The distributor may open an incident in the field for any of the reasons described in table 28 in the document titled 'CNMC - E - Code Tables - AAAA.MM.DD.doc' of the Communication Formats for the Electricity Sector, which is published in the section 'Formats of electricity exchange files' within the 'Change of Marketer' area of the CNMC website. The incident may remain open for a maximum period of 30 calendar days; after that time, if it has not been resolved, a rejection will be generated."

Furthermore, the document "FORMAT OF EXCHANGE FILES. CODE TABLES. ELECTRICITY" (see Diligence References) contains, among the rejection reasons listed in table number 27, the code "03," which refers to "NIF-CIF does not match that of the current contract." The table also specifies that this code is valid for process "C1," and "Except for changes of ownership and corrections of data of the owner," for process "C2."

C/ Jorge Juan, 6
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28001 – ***LOCALIDAD.1
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6/25

[IBERDROLA CLIENTES, S.A.U.] states in Written[...]#1 that when a customer requests a change of marketer in which it acts as the incoming marketer, "the procedure is the same whether or not there is a change of ownership in this change, since Iberdrola does not know who the owner of that supply was with the other marketer." It adds that "When a customer contacts IBERCLI to request a new connection, this company communicates this situation to the relevant distribution company, and it is the distributor who communicates the disconnection to the previous marketing company. Thus, IBERCLI at no time knows or communicates with the previous marketer." It also expresses that the new connection can be requested by any consumer who expresses their willingness to contract with the respondent and provides the required documentation for contracting. It explains that "When a consumer requests to contract the supply at a point, they do not need to have the consent of the previous owner of the supply point."

[IBERDROLA CLIENTES, S.A.U.] explains in Written[...]#1 that the available channels for contracting are: the telephone channel, the web channel, and the in-person channel.

Applicable regulations for the change of marketer process
Written Naturgy#1 cites the following reference regulation:

- Change of electricity marketer:

- o EU Directive 2019/944 of the European Parliament and of the Council, of June 5, 2019, on common rules for the internal electricity market and amending Directive 2012/27/EU. It points to articles 12 and 23.
- o Law 24/2013, of December 26, on the Electricity Sector. It points to articles 6, 40.1, 43.3, 44, 46, and transitional provision three.
- o Royal Decree 1435/2002, of December 27, regulating the basic conditions of contracts for the acquisition of energy and access to low voltage networks. It points to articles 1, 4, 6, 7, and 8.
- o Order ITC/1659/2009, of June 22, establishing the mechanism for transferring customers from the tariff market to the last resort supply of electricity and the procedure for calculating and structuring last resort electricity tariffs. It points to the first additional provision.
- Resolutions of the CNMC establishing the formats of exchanged files:
 - o Resolution approving the information exchange files between electricity and natural gas distributors and marketers dated December 20, 2016. File: INF/DE/152/15
 - o Resolution approving the information exchange files between distributors and marketers and amending the resolution of December 20, 2016, dated December 17, 2019. File INF/DE/011/19

C/ Jorge Juan, 6
www.aepd.es
28001 – ***LOCALIDAD.1
sedeagpd.gob.es
7/25

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Formats and communication protocols between electricity marketers and distributors approved by the Regulatory Supervision Chamber of the CNMC in its sessions on December 20, 2016, and December 17, 2019.

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Formats and communication protocols between natural gas marketers and distributors approved by the Regulatory Supervision Chamber of the CNMC in its sessions on December 20, 2016, and December 17, 2019.

Change of Marketer in the Claimed Case

According to Naturgy (EscritoNaturgy#1), in the case presented, the involved parties are as follows: Naturgy Iberia S.A. (outgoing marketer), UFD Distribución Electricidad S.A. (electricity distributor) - both of the above belonging to the "Naturgy Group" - and Iberdrola Clientes, SAU (incoming marketer). Regarding the accreditation of the consent of the holder for the change to take place, Naturgy states that it is the responsibility of the incoming marketer in the following terms:

[...] in the procedure for changing marketers, whether with or without contractual modifications, for a natural person initially holding a contract with a marketer of the Naturgy group who changes to another marketer, Naturgy acts as the outgoing marketer, and therefore is only informed of the customer's deregistration through the activation message of the change of marketer sent to it by the distributor. In any of the processes, UFD [...] acts respectively as electricity distributors [...], and as such executes the process based on the request of the incoming marketer in compliance with the applicable regulations. The marketer requesting the change of marketer, that is, the incoming marketer, is the one acting on behalf of the customer and therefore should be the one to accredit the consent of the holder to carry out the change, if required."

[IBERDROLA CLIENTES, S.A.U.] points out in Escrito[...]#1 that in this case, the activation of the new contract was carried out at a customer service point - in-person channel. It attaches (annex 2) the contract signed on October 18, 2021, which contains the following information:

- Last Name and Name/Company Name: TESTA RESIDENCIAL SOCIMI, S.A
- Supply Address: C/ ***DIRECCION.1
- Population: ***LOCALIDAD.1 Province: ***LOCALIDAD.1 Postal Code: ***CP.1
- CUPS: ***REFERENCIA.6
- Distribution Company: UFD Distribución de Electricidad, S.A.

[IBERDROLA CLIENTES, S.A.U.] attaches to Escrito[...]#2 the messages exchanged with UFD in the process:

C/ Jorge Juan, 6
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28001 – ***LOCALIDAD.1
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8/25

- It provides the document SOLICITUD_ALTA_C3_ELE_XML which contains the message of type "MensajeCambiodeComercializadorConCambios" regarding the request code ***REFERENCIA.7.

This message includes the following data:

- o Request date: "10-18-2021-03:31:58"
- o Expected action date: "2021-10-19"
- o CUPS: ***REFERENCIA.5
- o Type of modification: "S"
- o Type of Administrative Request: "T"

o Client: TESTA RESIDENCIAL SOCIMI, S.A (A82865890)

According to the Code Tables document, the value “S” in relation to the type of contractual modification means that “The request for contractual modification is solely of an administrative type.” Furthermore, according to this same document, the value “T” of the type of administrative request means “Change of holder due to transfer. It is a new supply contract with a new holder and the marketer acting as a substitute for the consumer: The previous holder does not transfer the pre-existing rights and obligations (the billing cycle is cut off). The security deposit is regularized (if applicable). Permitted contractual modifications.”

- It provides the document ACEPTACION_ALTA_C2_EL_XML which refers to the request code ***REFERENCIA.7 and the CUPS ***REFERENCIA.5.

- It provides the document ACEPTACION_C2 which refers to the request code ***REFERENCIA.7 and the CUPS ***REFERENCIA.5.

Naturgy (EscritoNaturgy#1) also states that the claimant was the holder of the electricity supply point ***REFERENCIA.5 with them until October 18, 2021. It states that on that day, UFD received a request from the respondent for the change of marketer with modifications to the access contract (process “C2”) in favor of a new holder (Testa). It indicates that the change was activated on October 19, 2021, at which point the claimant ceased to be its customer. Screenshots from the UFD SCTD system regarding the request are incorporated into EscritoNaturgy#1. Among the data recorded is the reference to the type “Change of holder due to transfer.”

Additionally, (see EscritoNaturgy#1) regarding this supply point, UFD subsequently received several requests (screenshots from the UFD SCTD system are incorporated into the writing):

- The first from HOLALUZ-CLIDOM, S.A on December 21, 2021, in favor of a new holder (different from Testa and the claimant). This request was rejected by UFD as the NIF of the request did not match that of the contract in force, having been indicated in the request that it was made for technical modifications and not for a change of ownership.

- Again, HOLALUZ-CLIDOM, S.A on December 22, 2021, requested the change in favor of the same holder. This time it was accepted as it was stated that...

9/25

that the application included the change of ownership of the supply point. The activation took place on December 24, 2021.

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On December 23, 2021, the claimant contacted Naturgy and proceeded to contract the electricity supply. Thus, a request was made to the distributor UFD for the change of supplier with contractual modifications (C2) that returned the ownership of the point to the claimant. The activation took place on December 25, 2021.

Naturgy indicates that, as of the date of its writing (June 15, 2021), the claimant's electricity supply contract with this entity remains active. It attaches (Annex IV of the Naturgy Writing #1) a copy of the electricity supply contract signed by the claimant on December 23, 2021.

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FOURTH: Agreement to Initiate

On January 20, 2023, the Director of the Spanish Agency for Data Protection agrees to initiate sanctioning proceedings against the respondent party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.d) of the GDPR, classified under Article 83.5.a) of the GDPR.

The opening agreement is notified electronically in accordance with the provisions of the LPACAP. The notification is made available to the respondent party on January 20, 2023, and is accepted on the same day, as evidenced by the documentation in the file.

FIFTH: Extension of the Deadline for Submitting Allegations to the Opening Agreement and Copy of the File

By means of a document submitted on January 31, 2023, UFD requests the delivery of a copy of the administrative file and an extension of five working days for submitting allegations.

UFD is responded to in a document signed and notified on February 2, 2023, in which it is agreed, in

accordance with Article 53.1.a) of the LPACAP, to grant access to a copy of the administrative file and, in accordance with Article 32 of the LPACAP, to extend the initially set deadline for submitting allegations by five working days.

SIXTH: Allegations of UFD to the Opening Agreement of the Proceedings

On February 10, 2023, the respondent party submits its written allegations in which it requests that the Agency agree to archive the present file declaring the absence of responsibility of UFD.

It structures the arguments in defense of its request for archiving into two allegations:

1. The first allegation – “Context on the Electricity Sector. Roles and Functions” – is an introduction about the role played by electricity distributors in the “processes of information exchange between suppliers and distributors,” which, it says, aims to facilitate the reading and understanding of its arguments and the “sectoral procedures” referred to therein.

It begins by citing Directive 2003/54/EC, which introduced a profound reform of the system that involved, among other measures, the separation of the activities of electricity distribution and marketing, with distribution activities remaining regulated and marketing activities operating in a free competition regime. In Spain, since July 1, 2009, all domestic electricity consumers must have a supply contract formalized with a marketing company in the free market.

The activity of electricity marketing is regulated by Law 24/2013, of December 26, on the Electricity Sector (LSE). Article 46 establishes the rights and obligations of marketing companies in relation to supply. They are responsible, among other activities, for formalizing supply contracts with end consumers, billing and collecting the consumption of those consumers (paragraphs d and g of Article 46.1), and addressing their requests and complaints (paragraph o of Article 46.1).

The activity of electricity distribution is regulated in Article 40 of the aforementioned LSE.

UFD analyzes in its document, in particular, the functions of distributors described in letters c) and m) of Article 40.2:

“2. Distributors, as managers of the distribution network in which they operate, shall have the following functions in the scope of the networks they manage:

(...)

c) Analyze requests for access to the distribution networks they manage and grant, deny, or, where appropriate, condition access to them according to the criteria established by regulation.

(...)

m) Keep their database of supply points updated and provide information as determined by regulation.”

1.1. Management of Access Requests to the Distribution Network (Article 40.2.c, LSE)

It explains that when a consumer decides to contract an electricity supply with a marketing company of their free choice, the marketer requests access for that consumer from the corresponding distributor of the network to which they wish to connect, providing the necessary data to manage the supply point, in compliance with current data protection regulations.

It recalls that Article 3 of Royal Decree 1435/2002, of December 27, which regulates the basic conditions of contracts for the acquisition of energy and access to low voltage networks, contemplates the obligation of marketers to manage requests on behalf of their clients and to provide the information determined to the distribution companies. Furthermore, Article 8 of R.D. 1435/2002 provides:

“1. Distributors must respond to requests for modification of the contracting method (...). The procedures established to address

11/25

These requests will mainly refer to the processes of transitioning from supply tariff contracts to access tariff contracts, changing marketers, changing contractual conditions of access contracts, terminating contracts, auxiliary processes for cancellation and replacement for each of the aforementioned procedures, and mechanisms for accessing and maintaining the Measurement Point Registry.

2. The General Directorate of Energy Policy and Mines, at the proposal of the National Commission of Energy, will develop the procedures referred to in the previous section, related to the management and administration processes of energy acquisition contracts and access to low voltage networks.

3. Marketers and distributors must install the necessary systems and IT means to exchange information through FTP mailboxes with pre-established files and formats or another system previously approved by the General Directorate of Energy Policy and Mines.” The National Commission of Energy

referred to in Article 8 of R.D. 1435/2002 was integrated in 2013 into the National Commission of Markets and Competition (CNMC).

UFD specifies that it has already provided this Agency with its response to the prior information requests “the details of the procedure and applicable regulations for the process of changing marketers, with and without modification of the holder's data, (...) including the formats of the exchange files approved by the Resolutions of the Regulatory Supervision Chamber of the CNMC which approve the information exchange files between distributors and marketers (INF/DE/152/15 and INF/DE/011/19) and the formats and communication protocols between electricity marketers and distributors approved by the Regulatory Supervision Chamber of the CNMC in its sessions of December 20, 2016, and December 17, 2019 (including the specific XML format applicable to the process of changing marketers with a change of ownership).”

It indicates that it also referred to “the information exchange mechanism between marketers and distributors, the Transportation Distribution Communication System (hereinafter, SCTD). The SCTD is not the transactional system or the database of a distributor, but rather an exchanger whose mission is to ensure that communication is carried out following the formats defined by the CNMC.”

It states that it is the CNMC that defines the different processes, the role of each actor in them (marketer or distributor), the deadlines for each one, the mandatory data that each message defined for each process must contain, and the corresponding XML message formats for each of them. Distribution companies validate that the XMLs they receive from the marketer for each process comply with the format and content defined by the CNMC. There are a series of processes that are only initiated at the request of the marketer, who sends the distributor the data defined in the XML message of the corresponding process, and the distributor will carry out two types of validations, format and content:

C/ Jorge Juan, 6

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28001 – ***LOCALIDAD.1

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12/25

The details of the format and content validations for any process can be consulted in the Resolutions of the CNMC INF/DE/152/15 and INF/DE/011/19. It provides a

link

(<https://www.cnmc.es/ambitos-de-actuacion/energia/cambio-de-comercializador>) to access the folder “Formats and communication protocols between electricity marketers and distributors approved by the Regulatory Supervision Chamber of the CNMC in its sessions of December 20, 2016, and December 17, 2019, where, in the document Tables of Codes, included in the Annexes folder, the specific details of all the validations established by the CNMC that the distributor must carry out in the process of changing marketers can be consulted, as it is a process that is only executed at the initiative of the marketer.”

As a summary of the obligation imposed on electricity distributors in Article 40.2.c) of the LSE, it states: “The sectoral regulations of the electricity sector assign to the distributor the function of managing access to the network and, within the framework of the exchange of information between marketers and distributors, must apply for each process regulated by the CNMC (including the change of marketer), the models and formats of files and messages established by the CNMC, as well as carry out validations established by the CNMC.

All processes of information exchange between marketers and distributors are supported through the SCTD system, which should not be confused with the information system of the supply points that the distributor must make available (SIPS).”

1.2. Obligation to keep the database of its supply points (SIPS) updated and to facilitate access to the information contained therein in accordance with what is determined by regulation (Article 40.2.m, LSE)

UFD explains that “The technical, consumption, and commercial database of each of the supply points connected to each distributor's network referred to in the regulation is called the Supply Points

Information System (hereinafter 'SIPS'). It is a database that each distributor makes available to the CNMC, marketers, and the consumers themselves for consultation or downloading of information related to the supply points of the distribution network.”

The structure and access to the SIPS are regulated in Article 7 of Royal Decree 1435/2002 and in Articles 3.s) and 5 of Royal Decree 1011/2009, of June 19, which regulates the Supplier Change Office.

The details of the fields that the SIPS must collect are established in Article 7.1 of RD 1435/2002.

Access to the information of the distributor's SIPS by marketers is legally subject to certain restrictions that are relevant for the purposes of the case at hand, as Article 7 of RD 1435/2002 expressly prohibits marketing companies from accessing any data that identifies the holder of the supply point and specifically none of the data.

C/ Jorge Juan, 6

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28001 – ***LOCALIDAD.1

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13/25

collected in letters c), z), and aa) of article 7.1, that is, the address of the supply point, the name and surname of the holder, and the address of the holder as recorded in the SIPS.

As a summary of the obligation imposed on distribution companies by letter m) of article 40.2 of the LSE, UFD indicates that the purpose of the SIPS is to make available the information of the supply points connected to the network to marketers, consumers, and the CNMC. However, not all the data that the distributor keeps updated in the SIPS is accessible to the other actors. Specifically, the data of the holder and the address of the supply point are subject to legally established access restrictions.

2. The second allegation concerns the “Infringement attributed to my represented party.”

2.1. Regarding the allegedly infringing conduct.

It makes the following “clarifications” regarding the facts presented in the opening agreement from which a possible violation of article 5.1.d) of the GDPR was inferred:

- It indicates that in the initiation agreement it was stated:

“The termination of the aforementioned contract occurred as a result of UFD authorizing the change of marketer with simultaneous change of holder that the incoming marketer, IBERDROLA CLIENTES, S.A.U. (hereinafter IBERCLÍ or the incoming marketer), requested under the request of its client and for its supply point, [...] IBERCLÍ provided UFD in that process with a CUPS that did not correspond to the supply point of its client but to the residence of the complainant, although it provided the exact address of its supply point (1st floor door 4). UFD proceeded to authorize the change of holder of the CUPS without verifying the accuracy of such data in relation to the address of the supply point for which the management was being carried out.” (The underlining is ours)

It asserts that IBERCLI did not provide UFD with any address of the supply point. That, as stated in its first allegation, “the content of the messages in the process of changing marketers, the data that must be included in them, and the validations to be carried out by the distributor, are determined by sectoral regulations.”

It adds that “There is no field, either mandatory or optional, in the messaging formats of the process of changing marketers, with or without a change of ownership, approved by the CNMC, in which the marketer can send the distributor the address of the supply in the XML request, therefore, neither UFD nor any other distributor can verify what the address is for which the marketer is requesting the change and, consequently, neither UFD nor any other distributor can check in their systems if that address actually corresponds to that of the CUPS for which the change of marketer is being requested.

The only field related to the address that exists in the messaging format approved by the CNMC is the one related to the tax address of the holder, not the address of the supply.

C/ Jorge Juan, 6

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28001 – ***LOCALIDAD.1

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14/25

But even in that case, it is an optional field, not mandatory, which is why IberCli also did not provide that address in its request message.”

(Our emphasis)

It provides the message format approved by the CNMC in which it indicates which fields the marketer can or must complete. There is no field for the address of the supply point in that format. It adds that the only field related to an address included in the message format is the address of the client's registered office or tax domicile, not that of the supply point.

It provides the “Table Process C2-Change of Marketer with Changes.xsd.” In the column “Element xd,” it mentions the “Address Type Indicator”; in the column “Description,” it states “Only accepts values F and S. Social/tax domicile of the client.” Additionally, in the column “Mandatory y/n,” it states “N.”

Additionally, a copy of the XML request for the change of marketer with a change of holder sent by the marketer IBERCLI is provided, where it can be clearly seen that the address of the supply point was not sent.

- Regarding the mention of the opening agreement to the “Letter to the Electricity Distributor” (which is part of the contract that the client enters into with IBERCLI), which was addressed to “UFD Electricity Distribution, S.A.,” in which the client authorized IBERCLI to contract on their behalf for access to the distribution networks “and which includes the exact address of the supply point and the CUPS number for which access is requested,” UFD states that:

“The contract between IberCli and its client, with all the data contained therein, is a document entered into between them and is never made available to UFD, so UFD cannot validate any information appearing in that contract.” (Our emphasis)

- Regarding the consideration included in the initiation agreement relating to the fact that the CUPS is linked to a supply point that is perfectly identified and individualized and that electricity distributors, in this case UFD, are responsible for processing the data contained in their Information System of Supply Points (such as the name and surname of the holder of the supply point, the exact address where it is located, the address of the holder in case it does not match that of the supply point, or the use to which the holder allocates the property), UFD states that:

What occurred has nothing to do with the management that UFD makes of the SIPS since that database is not intended to manage access processes to the network, but rather supports the obligation to have available and provide access to the information of the distributor's supply points. It adds that it does not incur a breach of the principle of accuracy since “In UFD's SIPS, the CUPS ***REFERENCE.5 is associated with the correct address of that supply point.”

- Regarding the consideration included in the initiation agreement relating to “according to the results of the inspection actions, it is evident that in the database of C/ Jorge Juan, 6
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28001 – ***LOCALITY.1

sedeagpd.gob.es

15/25

SIPS of UFD also recorded the NIF of the holder of the supply point; a fact that Article 7 of the R.D. does not address,” states that:

“[...] the evidence provided in the responses to the information requests made by the AEPD in this procedure, to which the AEPD seems to refer in the transcribed paragraph, does not correspond to the SIPS, but to screens of the SCTD. The System of Communication of Transport Distribution (SCTD) is a management and communication system of information between marketers and distributors, following the formats defined by the CNMC both in form and content. It is important to highlight that the SCTD is not the information system of the supply points (SIPS).”

2.2. Regarding the alleged violation of Article 5.1.d) of the GDPR, it states that all its actions in this matter have strictly complied with data protection regulations and the obligations imposed on the distributor by sectoral regulations. In this regard, it states that:

- It complies with the obligation imposed on distributors by sectoral regulations to maintain an updated database of supply points (SIPS). It asserts that the data contained therein complies with the principles

of Article 5 of the GDPR, including accuracy.

- The subject of the complaint made by the complainant is not related to the "maintenance of that database," "since this database, the SISP, is intended for purposes other than the process of changing marketers with a change of holder, which is the origin of the complaint by Mr. [the complainant]."

- UFD cannot be held responsible for the violation of Article 5.1.d) of the GDPR "based on the lack of verification of the correspondence between the CUPS number provided by IberCli and the actual address of the supply point that IberCli intended to contract." This assertion is supported by the following arguments:

(i) "There is no field, either mandatory or optional, in the messaging formats of the process of changing marketers, with or without a change of ownership, approved by the CNMC, in which the marketer can send the distributor the address of the supply."

(ii) "The marketer, Ibercli, also does not provide the distributor, UFD, with the contract signed with the client that includes the address of the supply point for which the contracting was intended, making it impossible for UFD to perform any validation with that document as it does not have it."

(iii) "[...] the distributor cannot perform any validation of correspondence between the CUPS referred to in the marketer's request and the address of its client, which is only known by the marketer itself. This is without prejudice to the fact that, for obvious reasons, validation is not part of the obligations imposed on distributors in the regulated process of changing marketers. UFD can only validate the formats and contents defined for each process by the CNMC."

(iv) In this case, IBERCLI made an error when submitting the request to change the marketer for a supply point, as it intended to manage the C/ Jorge Juan, 6.

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28001 – ***LOCALIDAD.1

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16/25

The hiring of your client facilitates the CUPS of a supply point that does not correspond to said client but to the Claimant.

SEVENTH: Test Phase

In a document dated 01/09/2023, electronically notified to UFD and made available to it on that day, with the notification accepted on 04/09/2023, the instructing body communicates to the defendant party that it agrees to open a test phase and carry out the following actions:

1. To consider reproduced for the purposes of evidence:

The claim filed by the claimant party and its attached documentation. The documents obtained and generated during the admission phase of that claim. All documents obtained and generated during the preliminary investigation proceedings, as well as the report of previous investigative actions, documents that are part of the procedure AI/00036/2022. The allegations to the initiation agreement of the referenced sanctioning procedure, submitted by UFD and the accompanying documentation.

2. To incorporate into the present sanctioning procedure all documents that are generated and obtained in the test phase of the sanctioning file with reference "EXP202105352".

3. UFD is asked whether the "Distributor's database" referred to in Table 27, "Reasons for Rejection," of the CNMC Resolution INF/DE/011/19, dated December 17, 2019 (Format of Exchange Files, Code Tables) with which the distributor must verify the request it receives from the incoming marketer, is the same database that integrates the Supply Points Information System that the distributor is obliged to keep updated.

UFD responds on 15/09/2023:

"In response to this request, we inform the following:

Table 27 REASONS FOR REJECTION is one of the tables defined by the CNMC within the exchange formats between marketers and distributors, which establishes, upon the request of the marketer for a contracting process regarding a supply point, the different reasons for rejection that the distributor may communicate and their criteria for application. Based on this, the validations to be performed in the distributor's own systems are defined, which respond to the marketer with either an acceptance of the request or a rejection with the corresponding reason.

The distributor's database is not the same as the SIPS database.

To provide the required data in the SIPS, distributors provide monthly extractions from their own systems' databases with the required fields, in accordance with current regulations, to the CNMC, which makes this information available in the SIPS, collecting the information provided by all distributors to all authorized agents for its exploitation.

It is worth noting, although it has been mentioned in other parts of the process, that when the marketer requests a modification of the contract, it does not provide the address of the supply point corresponding to the point for which it is requesting the change, so the distributor, even if it has the information of the supply point in its databases, cannot validate the address of the same." (The underlining is ours)

EIGHTH: Proposal for resolution to archive the procedure

On 05/10/2023, the instructing body signs the proposal for resolution formulated in these terms:

<>

The proposal document is notified to UFD electronically, with the date of availability being 05/10/2023 and the date of acceptance of the notification being 06/10/2023. This is evidenced by the acknowledgment of receipt in the file.

From the actions carried out in the present procedure and the documentation contained therein, the following has been established:

PROVEN FACTS

FIRST: The claimant party has stated that the electricity supply contract it had with NATURGY for the residence located at ***ADDRESS.1 was canceled without its knowledge or consent on 23/10/2021. It adds that NATURGY explained to it that the contract was canceled after receiving an order from the distributor UFD that it was obliged to comply with. UFD confirmed that it had communicated to NATURGY an order to change the marketer and to change the holder of the access contract for the CUPS of its residence and informed it that IBERCLI was the new marketer for the supply point of its residence.

SECOND: The file contains the invoice that NATURGY issued in the name of the claimant party on 19/10/2021. In the document, in addition to the identity data of the claimant party, it states under the heading "Your electricity supply data" the following information:

- Access contract number (UFD DISTRIBUCIÓN ELECTRICIDAD, S.A.): ***REFERENCE.4
- CUPS Code: ***REFERENCE.5
- Supply address: ***ADDRESS.1.

C/ Jorge Juan, 6

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28001 – ***LOCALITY.1

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18/25

THIRD: A screenshot of the XML message requesting a change of supplier with a change of contract holder that IBERCLI sent to UFD via the SCTD on 18/10/2021 is included in the file, along with the request for a change of supplier with modification of the contract holder for the access to networks (request code ***REFERENCE.7), for its client Testa Residencial Socimi, S.A., which evidences that the address of the supply point was not included in that message.

FOURTH: The file contains a document sent by UFD titled "Format of the Exchange Files C2-Change of Supplier with modifications in the electricity access contract," dated 17/12/2019 (INF/DE/011/19). In the XML messaging formats of the supplier change process "C2," there is no field, either mandatory or optional, that the supplier can fill out to communicate the address of the supply point to the distributor in its request. This is confirmed by examining the "Table Process C2-Change of Supplier with Changes.xsd" referenced in point 7 of the document mentioned in the first paragraph of this proven fact. Among the reasons for rejection applicable to the C2 process that the distributor must use when performing format and content validations, listed in table 27 of the document "Format of the exchange files. Tables of codes Electricity," referenced in point 8 of the document cited in the first paragraph, none pertains to a discrepancy between the CUPS and the location of the supply point.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Applicable provisions

The GDPR addresses in its Article 5 the principles governing the processing of personal data, which states:

C/ Jorge Juan, 6

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28001 – ***LOCALIDAD.1

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19/25

“1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (<>)

b) [...] (<>);

c) [...] (<>);

d) accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that are inaccurate are erased or rectified without delay (<>);

e) [...] (<>);

f) [...] (<>).

2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it (<>)”.

III

On the data controller

The GDPR defines in Article 4.7) the figure of the “data controller” as “the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.”

The Guidelines 7/2020 of the European Data Protection Board, adopted on 07/07/2021 (version 2.0), clarify that the concept of data controller is a “functional” concept, as its purpose is to assign responsibilities based on the actual role played by each party in the processing carried out.

The Guidelines (section 12) state that “the legal status of ‘data controller’ [...] of the participants should be established in principle based on their specific activities in a given situation and not based on the formal designation of a participant as ‘data controller’ [...] This implies that the assignment of the role of data controller [...] should normally derive from an analysis of the facts or circumstances of the case and, consequently, is not negotiable.” They add (section 13) that the concept of data controller is an “autonomous” concept as it must be interpreted fundamentally according to Union law on data protection and “should not be affected by other concepts —with which it sometimes collides or overlaps— from other areas of law.”

Based on what is stated by the Guidelines 7/2020 of the EDPB, we must emphasize that in the process of changing electricity suppliers with or without a change of holder, both the incoming supplier and the distributor act as controllers regarding the processing of personal data they carry out in compliance with the functions assigned to them by sector regulations.

Thus, when the supplier collects the data of its client, particularly regarding the CUPS data that now

concerns us, and transmits it to the distributor connected to a

C/ Jorge Juan, 6

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28001 – ***LOCALIDAD.1

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20/25

Request for change of supplier, and potentially also for change in the holder of the access contract, acts as the data controller in the processing of data it carries out. Without prejudice to the fact that, in cases of request for change in the holder of the access contract, it intervenes - as provided by R.D. 1435/2002 - as the representative of its client.

Furthermore, the distributor also acts as the data controller when, upon receiving the data provided by the incoming supplier, it carries out processing of such data in connection with the management to validate or not the change of supplier and, potentially, the change of ownership in the access contract to the networks.

IV

On the non-existence of responsibility of UFD

1. The complaint that led to the initiation of the sanctioning procedure against UFD for an alleged infringement of Article 5.1.d) of the GDPR (principle of accuracy) concerned the cancellation of the electricity supply contract that the complainant had signed with NATURGY for their residence, located at ***ADDRESS.1.

The cancellation of the contract occurred as a result of UFD validating the change of supplier with a simultaneous change of the holder of the access contract that IBERCLI requested from the distributor for its client, Testa, whose supply point was located in floor X door Y, of the same locality, street, number, and portal letter as the supply point of the complainant.

IBERCLI indicated in the request for change of supplier with change of holder that it sent to UFD a CUPS number that was not that of its client Testa's residence, but rather the CUPS ***REFERENCE.5 that corresponds to the complainant's residence.

In the agreement to open the procedure, a presumed infringement of the principle of accuracy of the data (Article 5.1.d of the GDPR) was attributed to UFD, explaining in this regard that UFD had authorized the change of supplier and the holder of the access contract for a CUPS of which the complainant was the holder "without having verified the accuracy of such data in relation to the address of the supply point for which the management was being carried out."

2. All processing of personal data must respect the principles that govern it, as outlined in Article 5.1 of the GDPR. Article 5.1.d) of the GDPR states that the personal data subject to processing shall be "accurate and, where necessary, kept up to date; all reasonable measures shall be taken to ensure that personal data that are inaccurate are erased or rectified without delay ('accuracy')."

The principle of accuracy implies that the data controller who holds personal information will not process such information without taking measures that ensure, with reasonable certainty, that the data is accurate and up to date. In turn, the obligation to ensure the accuracy of the data must be considered in the context of the purpose of the processing. In this sense, the GDPR imposes on the data controller the obligation to ensure accuracy.

C/ Jorge Juan, 6

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28001 – ***LOCALITY.1

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21/25

treatment the obligation that the data be accurate and "if necessary, updated."

3. Having established the above, it is necessary to refer to Article 4 of the LOPDGDD, "Accuracy of the data," which provides:

"1. In accordance with Article 5.1.d) of Regulation (EU) 2016/679, the data shall be accurate and, if necessary, updated.

2. For the purposes provided in Article 5.1.d) of Regulation (EU) 2016/679, the data controller shall not

be held liable, provided that it has taken all reasonable measures to ensure that the inaccuracy of personal data is rectified or deleted without delay, with respect to the purposes for which they are processed, when the inaccurate data:

a) [...]

b) Have been obtained by the controller from a mediator or intermediary in cases where the applicable regulations in the sector to which the data controller belongs establish the possibility of intervention by a mediator or intermediary who collects the data of the affected parties in their own name for transmission to the controller. The mediator or intermediary shall assume the responsibilities that may arise in the event of communication to the controller of data that do not correspond to those provided by the affected party.” (The underlining is ours)

The provision of the LOPDGDD must be connected with Article 3, point 2, of Royal Decree 1435/2002, which states:

“2. In the event that the consumer chooses to contract energy and access to networks through a marketer, the latter may only contract access to the networks with the distributor as the consumer's agent. The supply contract between the consumer and the marketer must be formalized in writing. It must include an authorization for the marketer to act as the consumer's agent, contracting with the distributor the access tariff and transferring to the distributor the necessary data for the supply. The collection, processing, and transfer of this data must at all times comply with the provisions established in the regulations on the protection of personal data that are applicable.” (The underlining is ours)

From the joint application of these provisions – and without prejudice to the obligation imposed on the distributor by Article 4.2 of the LOPDGDD to adopt “all reasonable measures to ensure that inaccurate data is rectified or deleted without delay” – it follows that UFD shall not be held liable for the inaccuracy of the data when, as is the case here, it has obtained them from a data controller acting as an intermediary, the incoming marketer, IBERCLI, since the regulations of the electricity sector to which it belongs provide that the marketer collects the necessary data from the consumer, as their agent, and transfers them to the distributor.

4. In parallel, in accordance with the specific regulations of the electricity sector, the change request that the incoming marketer sends to the distributor – which is required to be...

C/ Jorge Juan, 6

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28001 – ***LOCALIDAD.1

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22/25

must be done through the SCTD - it must comply with the communication formats and protocols between marketers and distributors defined by the CNMC. The CNMC is responsible for defining the different processes, the mandatory data that each message defined for each process must contain, and the corresponding XML message formats for each of them. In turn, the distributor will carry out the format and content validations as provided by the CNMC.

In the electricity sector, the process of changing marketers with modifications to the access contract is referred to as “C2,” which is the factual scenario presented in the matter at hand.

The document “Format of the C2 Exchange Files - Change of Marketer with Modifications to the Electricity Access Contract,” dated 17/12/2019 (INF/DE/01/19), in its section 7, “Formats of Electronic Communication,” refers to the explanatory or descriptive tables of the fields contained in the exchange files of the C2 process (“CNMC - E - Process C2 AAAA.MM.DD.xls”).

The examination of the “Table Process C2-Change of Marketer with Changes.xsd” approved by the CNMC, which details the format of the C2 exchange files, allows us to verify that there is no field, either mandatory or optional, that the incoming marketer can fill out in order to provide the distributor with the address data of the supply point in the XML message requesting the change.

Therefore, given that the formats of the marketer change process are mandatory for the parties responsible for processing involved in the process and do not allow for the incorporation of the address data of the supply point into the messages that the marketer sends to the distributor, that data will not be part of the information that the distributor receives. Thus, as UFD asserts, neither the claimed entity nor any other distributor could have carried out a verification that the CUPS for which the change was

requested was located at the same address recorded in their systems.

Furthermore, in relation to the C2 process, the distributor, when carrying out the format and content validations, must use the rejection reasons applicable to the aforementioned process, as collected in table 27 of the document "Format of the Exchange Files. Code Tables Electricity," approved on 17/12/2019, file INF/de/011/2019 (document referred to as "CNMC - E - Code Tables - AAAA.MM.DD.doc" of the Communication Formats for the Electricity Sector, which is published in the section "Formats of the Electricity Exchange Files" within the "Change of Marketer" area of the CNMC website).

Upon examining that table, there is no rejection reason related to the discrepancy between the CUPS and the location of the supply point; therefore, the distributor, in a case like the one at hand, could not deny the validation of the requested change for that reason.

It follows from the above that, despite UFD, when validating the change of marketer with a change in the holder of the access contract requested by C/ Jorge Juan, 6

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28001 – ***LOCALIDAD.1

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23/25

IBERCLÍ carried out the processing of an inaccurate data - the CUPS data of the claiming party - lacking the necessary element of culpability in its conduct.

5. The requirement for sanctioning responsibility necessitates the concurrence of the subjective element of the infringement, an essential requirement since the principle of culpability governs our sanctioning Administrative Law, which prevents the imposition of sanctions based on the objective responsibility of the alleged infringer.

As the Constitutional Court (T.C.) has repeatedly confirmed, the presence of the subjective element or culpability in a broad sense is a condition for the emergence of sanctioning responsibility. Furthermore, it clarifies that the direct responsibility of legal entities, accepted in our sanctioning Administrative Law, does not mean that the subjective element of fault has been eliminated in the case of administrative infringements committed by legal entities, but simply that this principle must necessarily be applied differently than it is with respect to natural persons.

We refer to STC 246/1991, of 19/12/1991, which in its Legal Foundation 2 states:

"[...], regarding fault, this Court has declared that, indeed, the Spanish Constitution undoubtedly enshrines the principle of culpability as a basic structural principle of Criminal Law [...]. This principle of culpability also governs in matters of administrative infringements, since to the extent that the sanction for such infringement is one of the manifestations of the State's ius puniendi, an objective or faultless liability regime is inadmissible in our legal system (STC 76/1990). Even this Court has qualified the principle of personal responsibility for one's own acts - the principle of the personality of the penalty or sanction - as 'correct' (STC 219/1988).

All of this, however, does not prevent our Administrative Law from admitting the direct responsibility of legal entities, thus recognizing their capacity to infringe. This does not mean, in any way, that in the case of administrative infringements committed by legal entities the subjective element of fault has been eliminated, but simply that this principle must necessarily be applied differently than it is with respect to natural persons. This distinct construction of the imputability of the authorship of the infringement to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject."

Law 40/2015 on the Legal Regime of the Public Sector provides in Article 28, under the heading "Responsibility":

"1. Only natural and legal persons, as well as, when a Law recognizes them the capacity to act, groups of affected parties, unions, and entities without legal personality and independent or autonomous assets, that are responsible for the same by way of intent or fault, may be sanctioned for acts constituting administrative infringement." (The underlining is from the AEPD)

The examined facts demonstrate that in the conduct of UFD that is subject to evaluation - the

processing of an inaccurate CUPS -
C/ Jorge Juan, 6
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28001 – ***LOCALIDAD.1
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24/25

In the absence of the element of culpability, no sanctioning responsibility can be derived for UFD from the conduct examined herein.

6. Without prejudice to the preceding considerations, it is appropriate to make a final clarification regarding what was stated by the responding party about the strict compliance with the principle of accuracy of the data contained in its systems. It was questioned during the evidentiary phase whether the "Distributor's database," referred to in Table 27, "Reasons for Rejection," was the same database as the SIPS of the distributor. UFD responded: "The distributor's database is not the same database as the SIPS." It added that "To report the data required in the SIPS, distributors provide monthly extractions from their own databases with the required fields, in accordance with current regulations, to CNMC, which makes this information available in the SIPS, which collects the information provided by all distributors, to all authorized agents for its exploitation."

It seems to be inferred, therefore, that in a case such as the one currently under consideration, when the distributor validates a change of marketer with a change of holder in the access contract for a CUPS that the marketer has erroneously provided, and which is not that of its client, the person who will appear in the distributor's systems as the holder of that CUPS and the holder of the access contract to networks will be a person - the client of the incoming marketer, in this case the client of IBERCLI - who is not effectively the holder of the CUPS. In that sense, the distributor's databases will incorporate an inaccurate data.

Moreover, that inaccurate data - the new "formal" holder of the CUPS - which appears in such a case in the database of the distribution company, through the "monthly extractions from their own databases with the required fields" that they provide to the CNMC, as provided for in current regulations, is intended to be part of the SIPS.

Therefore, in accordance with the applicable legislation,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: Given the absence of culpability, TO ORDER THE ARCHIVING of the sanctioning procedure referenced above opened against UFD DISTRIBUCIÓN ELECTRICIDAD, S.A., with NIF A63222533, for an alleged infringement of Article 5.1.d) of the GDPR.

SECOND: TO NOTIFY this resolution to UFD DISTRIBUCIÓN ELECTRICIDAD, S.A., with NIF A63222533.

THIRD: This resolution shall be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or, directly, an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí
Director of the Spanish Agency for Data Protection
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